CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
June 10, 2009
7:00 p.m.
Opa-locka Senior Citizens Center
14295 NW 21st Court
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, June 10, 2009 in the Opa-locka Senior Citizens Center, 14295 NW 21st Court, Opa-locka, Florida, 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Commissioner Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby. Commissioner Rose Tydus arrived at 7:04 p.m. and Vice Mayor Myra L. Taylor was not in attendance.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Clerk Irby advised the Commission of the request to amend the agenda to include the following resolution as item 12.1 (new items):

12.1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A EMERGENCY LOCAL GOVERNMENT EMERGENCY RELIEF REIMBURSEMENT AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND THE STATE OF FLORIDA DEPARTMENT OF

TRANSPORTATION (FDOT) IN THE AMOUNT OF SIXTY-EIGHT THOUSAND TWO HUNDRED FOURTEEN DOLLARS AND THIRTEEN CENTS ($68,214.68) FOR REIMBURSEMENT OF DEBRIS REMOVAL CAUSED FROM HURRICANE WILMA. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12.1.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

Commissioner Johnson pulled agenda items 15.1, 15.3 and 15.4 from the Consent Agenda.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Commissioner Johnson	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

There were none.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – May 27, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of May 27, 2009.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Not present

Mayor Kelley Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to District 1 Miami-Dade County Commissioner Barbara Jordan came forward and briefly discussed a meeting held for the 2010 Superbowl scheduled to be held in Miami. As a part of that, Commission Jordan is hosting a small business workshop on Tuesday, June 16, 2009 from 5:00 p.m. to 8:00 p.m. at Florida Memorial University for emerging small businesses who would like to become prepared for bidding on dollars that become available through the NFL. Finally, he reported that the Miami-Dade County Opa-locka Beautification and Rehabilitation program is going well and Commissioner Jordan would be coming to the city for dollars to assist with marketing the program.

After receiving several inquiries at a community meeting on the rehabilitation program, Commissioner Johnson said the individuals were told to meet at the Opa-locka CDC; however, there wasn't anyone at that location. Also, it appears that no one has followed-up with several applicants. She requested that the Commission is provided with a report from the Opa-locka CDC on a bi-monthly schedule. Commissioner Johnson thanked Commissioner Jordan for appointing her as district representative for the Community Action Agency (CAA).

Mayor Kelley spoke about the James Street Tot Lot and the adjacent land. Manager Finnie responded that the cost would be 8.6 Million Dollars for the entire area.

In the interim, Mayor Kelley requested that the City Manager touch up the James Street Tot Lot.

10. PUBLIC PRESENTATION:

10a. CITIZENS' FORUM:

1. Steve Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and suggested that a workshop is held for city residents on understanding the utility bill.

Mayor Kelley stated that the city would look into Mr. Barrett's suggestion for a workshop on the utility issue. However, all complaints should be reported to the City Manager or the City Commission so that the issue is resolved. He further said that the hardship program is in place to assist those residents who cannot pay their utility bill.

Mr. Barrett further spoke about an emergency he experienced with the water and not being able to identify his meter in the alley. He suggested that the meters are identified with the number portion of the home address.

Mayor Kelley said it is his understanding that there's a number for emergencies dealing with the water. He further suggested that Lavelle Jenrette make available the telephone number for water emergencies to citizens of Opa-locka.

Lavelle Jenrette, Assistant Public Works Director for the City of Opa-locka Public Works Department came forward and provided the emergency public works telephone number which is to the Opa-locka Police Department.

Both Mayor Kelley and Commissioner Johnson agreed that there should be a unique telephone number for after hour emergencies for the Public Works Department and this should be something the City Manager should work on.

2. Grace St. Louis of 221 Aladdin Street, Opa-locka, Florida appeared before the City Commission to express her concerns about the abandoned property next to her home.

Commissioner Johnson requested that the City Manager address all abandoned properties within the city. She added that the lawn for property on NW 24th Avenue and NW 137th Street is overgrown. The city must attend to every abandoned property in the city and put a lien on those properties.

Ms. St. Louis mentioned about the abandoned property next to Historic City Hall. Additionally, she spoke about the need for having the trees on city property trimmed on a regular basis, more specifically the trees near her home. The last time the trees were trimmed in the area, she asked the worker why weren't the trees trimmed on Aladdin Street and the worker responded by saying there were no funds and this she said, is unfair.

Mayor Kelley inquired as to whether it was a city employee or contractor who told Ms. St. Louis that there were no funds.

Ms. St. Louis advised that she didn't know who the person worked for but that individual did state to her that the city didn't have the funds to trim the trees on Aladdin Street, but they had funds to trim the trees on Sharar Avenue.

As a result of his previous request that the City Manager look into abandoned and foreclosed properties in preparation for hurricane season, Mayor Kelley indicated that the City Manager would probably address this issue under his report.

Ms. St. Louis further voiced her concerns about the property across the street from her home near a light pole which is a site for recurring illegal dumping. She asked that the city erect a "no dumping" sign on that property.

Commissioner Johnson directed that the City Manager work on a sign to be placed at the illegal dumping site referenced by Ms. St. Louis by the next commission meeting. She

said she didn't know what happened to the cameras that were supposed to capture illegal dumping throughout the city.

3. Eloy Romo of 13300 NW 42nd Avenue, Opa-locka, Florida, appeared before the City Commission to express his concerns relating to the accumulation of water at the intersection of NW 133rd Street and Lejeune Road and requested that the water issue on that main road be corrected.

Mayor Kelley asked whether the area referenced is one of the areas the City Manager is working on.

Manager Finnie said that area is one of the areas; however, there are several areas that were identified as priority.

Mayor Kelley advised that this is an area the City Manager is working on and he is aware that the city is on notice when it gets to a higher level and there is a need to pump the water; but he doesn't know whether or not the water rose to that level.

Manager Finnie said the city was occupied with the area around the hospital and the city was on call.

Mayor Kelley directed the City Manager to make NW 133rd Street and Lejeune Road one of the priorities to check. He informed Mr. Romo that in the short term the city would make sure pumps are available to lower the water and in the long term the city is working on that road, and others to deal with the drainage.

Chief Wilbert Harvin appeared on behalf of Miami-Dade County Fire Rescue to address any concerns and/or questions the Commission may have relating to fire rescue.

11. ACTION ITEMS (items from consent agenda pull list):

15.1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA INSTITUTING A MORATORIUM ON STREETNAMING WITHIN THE CITY OF OPA-LOCKA, FLORIDA FOR A PERIOD OF TWO (2) YEARS. *Sponsored by R.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to pass the above resolution.

At the regular meeting on May 27, 2009, Commissioner Johnson mentioned that she had one pending item for streetnaming which is on the agenda for first reading. Since the ordinance would have to come back before the Commission for final approval, Commissioner Johnson requested that the effective date on the resolution be after the final approval at the next meeting.

Commissioner Tydus didn't have a problem with changing the effective date and directed the City Attorney to change the effective date to the day after the next meeting.

Commissioner Holmes stated that the City Commission started to do something in the community that should have been done back in the 1990's by honoring individuals who have serviced the "great" City of Opa-locka. In no other neighboring communities would you see streets named after individuals who have contributed to the city. At this time, there are individuals in this city who he would like to have a street named after; therefore, he doesn't see why the Commission is worried about instituting a moratorium on streetnaming. The concern in the past was the cost; however, the City Clerk has begun having the streetnaming events under the new pavilion at Historic City Hall to cut down on cost. He further expressed his disagreement with the above resolution.

Commissioner Tydus stated that this was not a matter of cost, although there are costs, but it is also a matter of criteria; the Commission hasn't followed stringent criteria. Should the city compare its streetnaming criteria with other municipalities, the city would most definitely come up short. In her opinion, streetnaming is nothing that should be considered frivolous and she believes they've been very frivolous and irresponsible in the whole process.

Mayor Kelley agreed that the Commission should hold off a little on streetnaming but he is concerned with several sections more specifically Section 2 relating to the two year period and Section 3 as to how that would be carried out. He is willing to support a year or until the next election because two years will go into 2011. Additionally, he said he was not clear as to how Section 3 would work in terms of the survey, how the survey would be done and how the city would come to the conclusion of confusion.

Commissioner Tydus said she didn't think it would be anymore difficult or confusing then any other survey. The survey can be taken by way of the newsletter, water bill, mail or put out as a flyer without any cost to the city; therefore, she doesn't see where this would be a difficult thing to do. As it relates to the confusion, she said there had been some confusion as far as mailing is concerned because they don't understand that the post office is always going to recognize not the name that the city names it but the original street name.

Prior to retiring from the US Postal Service, Commissioner Johnson spoke to the manager of address information and as long as the clerk would submit the documentation to Sergio Rodriguez, Manager of Address Information for insertion of a dual name in the computer, the names are recognized.

As it relates to the two year period, Commissioner Tydus said she would be willing to amend the resolution to reflect a period of eighteen months which would bring the city into the next election.

Mayor Kelley expressed his concerns relating to the survey and what it would say to the residents and businesses owners. He asked, would it include the same criteria currently being used?

Commissioner Tydus said that the citizens didn't even know what criteria the Commission is using. The survey is something that she cannot come up with right at this time, but if Mayor Kelley would like she can get with the administration and come up with something by the next meeting. However, the main objective of Section 3 is to get the citizens input and understanding.

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to amend Section 2 for a period of eighteen months and for the effective date to be June 25, 2009.

There being no discussion on the amendment, the motion passed by a 3-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	No
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

Commissioner Holmes asked if 4/5 vote was needed to amend the resolution?

Attorney Weeks replied, no.

There being no further discussion on the original motion, the motion passed by a 3-1 vote.

Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE INTERIM CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH PAUL T. SWEENEY FOR SPECIALIZED CONSULTING SERVICES AND PROFESSIONAL SERVICES IN AN AMOUNT NOT TO EXCEED THIRTY-ONE THOUSAND TWO HUNDRED FIFTY DOLLARS ($31,250.00) PAYABLE FROM ACCOUNT NO. 26-521312. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson stated her concerns with regards to entering into continuous professional service contracts. In reviewing the correspondence dating back to 2006, it is her opinion that this is almost like creating a job. At this point, she asked why isn't this service a part of someone's lateral assignment or why does the city need to continue with this contract? Additionally, the scope of services from year to year has not changed. In her opinion, having someone on contract is in preparation to get someone available to take over but not to have it create a position. With that amount of money, the city can hire an additional police officer to put on the streets.

Manager Finnie apologized to the Commission for the item not being clear; however, it is true that Mr. Sweeney has been with the city for a while specializing in federal grant writing with the specific emphasis on police related activities. As the Commission is aware, the city may be granted the Weed & Seed this year which the city has not been successful with in the past years. Mr. Sweeney is now working on a number of grants recently approved by this Commission. He respectfully requested approval from the Commission on this item because they are specialized grants as oppose to the standard grants. The city does have a new grant person whose focus has been on federal items non police related, state and county items. He said Mr. Sweeney has a specific assignment that deals with police and his most significant assignment is to find ways to supplement the budget to find dollars to pay for the police officers.

Commissioner Johnson expressed her discontentment with all the grant writers hired by the city.

Manager Finnie said he would take the recommendation and commence to transition out; however, the city is in a unique period where the amount of grant opportunities available is far more than anyone could have anticipated. The city is evolving as an organization in reducing reliance on outside contractors through our grants.

Commissioner Johnson was under the impression that the agreement was for a one year period. After learning through the City Manager that the agreement is for six months, she said she would support the resolution with the idea that the city will transition out.

Of concern to Mayor Kelley was why grants didn't include a payment clause in them.

Manager Finnie said the city has not built in a success fee.

With this continuous agreement, Mayor Kelley asked, why hasn't the city included a payment clause to reduce city's cost?

Manager Finnie said the city needs to do that. For instance with the Weed & Seed, the city will earn $300,000.00 which will more than cover Mr. Sweeney's cost; however, in the future it may make sense to build in the cost.

Mayor Kelley asked, why can't the city include a clause in this agreement to cover the cost? He suggested that a clause is included in this agreement and all future grant agreements wherein there's dollars in which the salary or a portion thereof can be paid to reduce the city's cost.

Manager Finnie said he would have to research this grant to see if there's prohibition against a success fee.

Mayor Kelley said he was not talking about the grant but the agreement (i.e. include a clause in this agreement if Mr. Sweeney writes a grant for the police department wherein in that grant contains a reimbursement for services of a grant writer than the city would not be charged and the city would not have to pay him for that portion). Of concern was the fact that he didn't see that clause in the agreement and as it stands now, it's not even an option. He said it's not a question as to whether it is going to be done but it should have the option in the agreement. Should this individual write a grant and the city is able to pay him out of that then that saves the city money. This is just an option that needs to be included in the agreement.

Manager Finnie said he would look at that option; but in many grants the city builds in an administrative factor that has a positive impact on the city each year of the grant so he can look at some language to address Mayor Kelley's issue.

Mayor Kelley said he is looking at trying to save the city money and he is aware when a grant is written there's that possibility. He stated to the City Manager to make sure there's a clause in the agreement to have that option available.

Because most grants have that 10% administrative costs, Commissioner Johnson suggested that those grants having that percentage show where it is being pushed back into personnel.

Mayor Kelley directed the City Manager to look at the language when drafting the agreement and follow reference he made.

As it relates to the section which talks about other expenses for which the city shall reimburse the provider, Commissioner Tydus said # 2 makes mention of costs for any specialized computer software required by the department. If this individual specializes in Police Department grants, she would think that any specialized computer software this individual would already have, if not, she would imagine it would be very expensive. Additionally, it doesn't specify that any specialized computer software which may be purchased will become the city's property.

Manager Finnie said to his knowledge that clause had not been utilized; however, certain federal programs require specific software in order to apply so whomever the city is using would have to acquire that software.

Commissioner Johnson suggested that the clause regarding specialized computer software be extracted from the contract because a non-personnel individual shall not have the right to any software. All equipment and software purchases shall be done through the Information Technology Department and the city should have ownership of it.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY ATTORNEY TO SEEK OUTSIDE COUNSEL FOR CERTAIN CASES INVOLVING THE PERSONNEL BOARD OF THE CITY OF OPA-LOCKA. *Sponsored by C.A.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson said she would like to see some of the attorneys interviewed during the City Attorney selection process considered for working with the city.

Attorney Weeks advised that this issue came as a concern of the administration and she tried to address it based on a recent hearing which she spoke to the Commission about. She is seeking to do, whenever she brings a recommendation to the Commission for outside counsel, is to get someone who is an expert in that particular area. She said that anyone she puts forth to the Commission would be someone who has a specialty in the area of concern and willing to work with the city on a governmental rate. Certainly who the Commission hires is their decision; however, she respectfully requested to be allowed to offer a recommendation for people who the City Attorney's Office would be working closely with.

Commissioner Johnson highly recommended advisement from the Florida League of Cities since the city may get a more cost effective rate.

Attorney Weeks said these attorneys have the specialty in employment issues and are affiliated with and conduct seminars for the Florida League of Cities as well as attorney conferences. She said she would take what Commissioner Johnson just stated and incorporated as a part of how the City Attorney's Office does business and make recommendations from here on out.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN EMERGENCY LOCAL GOVERNMENT EMERGENCY RELIEF REIMBURSEMENT AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND THE STATE OF FLORIDA DEPARTMENT OF TRANSPORATION (FDOT) IN THE AMOUNT OF SIXTY-EIGHT THOUSAND TWO HUNDRED FOURTEEN DOLLARS AND THIRTEEN CENTS ($68,214.13) FOR REIMBURSEMENT OF DEBRIS REMOVAL AND COSTS FROM HURRICANE WILMA. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF NW 42ND AVENUE (LEJEUNE ROAD) FROM NW 135TH STREET TO THE OPA-LOCKA CANAL AS "CAPTAIN BARRINGTON IRVING AVENUE"; PROVIDING FOR

REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF ORIENTAL BOULEVARD FROM NW 17TH AVENUE TO NW 37TH AVENUE AS "THE HONORABLE TIMOTHY HOLMES BOULEVARD"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 27, 2009).

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to adopt the above ordinance.

Commissioner Holmes advised that there is no conflict on his part in supporting this ordinance and he could have remained in the room during first reading of this ordinance.

Mayor Kelley asked for a legal opinion as it relates to Commissioner Holmes voting on the above ordinance.

In anticipation of this discussion, Attorney Weeks said she checked with the Commission on Ethics and the opinion discussed, they didn't find anything that would show a conflict unless Commissioner Holmes would be receiving financial remuneration as a result of the street being named after him. If there was some way that he could receive financial remuneration then that would be a problem. The suggestion was if there appears to be support for it in anyway of if there was a way he could, for not wanting to have the appearance of impropriety where people would question it, they suggested and only as a

suggestion that he recuse himself from the vote. But there isn't anything specific to say that it would be a conflict of interest pursuant to F.S. 112 for Commissioner Holmes to vote on the issue and even in this case to second it.

Commissioner Johnson asked, when would the Commission have the Streetnaming Committee because she doesn't remember doing it during first reading of this ordinance?

Attorney Weeks said the ordinance calls before there's a vote on the issue that the Commission state for the record whether there are liens of any sort and whether the individual has contributed in a significant way to the City of Opa-locka.

Commissioner Holmes said he didn't owe the city any money.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

Commissioner Holmes thanked his colleagues and the citizens of the "great" City of Opa-locka for their support.

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 7, ARTICLE V, OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "DANGEROUS OR SUBSTANDARD STRUCTURES" BY AMENDING SECTION 7-65 ENTITLED "DEFINED" AND PROVIDING FOR DEFINITION OF "BLIGHTED STRUCTURES"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 27, 2009). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to adopt the above ordinance.

Mayor Kelley stated that this item would assist the city in dealing with abandoned and foreclosed properties.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SUBMIT AN APPLICATION FOR GRANT FUNDS FROM THE FY 2009-2010 EDWARD J. BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT (JAG) IN THE AMOUNT OF ONE HUNDRED EIGHTY SIX THOUSAND SEVEN HUNDRED AND THIRTEEN DOLLARS ($186,713.00) FOR THE CITY OF OPA-LOCKA POLICE DEPARTMENT. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR QUALIFICATIONS (RFQ) FROM QUALIFIED CONSTRUCTION FIRMS FOR IMPROVEMENTS TO THREE (3) PUMP STATIONS AS A PART OF THE CITY'S WASTEWATER INFRASTRUCTURE REHABILITATION PROGRAM. *Sponsored by C.M.*

The consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the consent agenda resolutions.

The motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Not present
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie provided a brief update on the Youth Summer Job Program starting on June 29, 2009 and ending July 31, 2009; the current French drainage system which must be converted into wastewater piping running into the canal as oppose to the ground; and

the letters going out to banks on abandoned and foreclosed properties requesting that those units are prepared for hurricane season.

He further provided an overview of tabbed items in the booklet provided to all members of the Commission. They were presented as follows:

Tab 1 Action List: Commission Concerns and Departmental Responses/Results

Tab 2 Grant Management: Grant Opportunities and Submission Update

Tab 3 Waste Management 2009 Trash and Bulk Pickup Schedule

Tab 4 City of Opa-locka: In the News

Tab 5 Upcoming City Events: Father's Day Event, Saturday, June 20, 2009 @ 6:00 p.m., Town Center Property, 2nd Floor; Senior's Fishing, Thursday, June 25, 2009 at 8:30 a.m.; tentative date for Hurricane Preparedness on Monday, June 29, 2009 or Tuesday, June 30, 2009.

Commissioner Johnson provided her concerns relating to Succession Planning for vacation coverage; inquiries regarding Parks & Recreation and her request to sit down with the City Manager to come up with best practices at Sherbondy Park due to the number of activities for children and adults; timeline for infrastructure to be provided and this item to be made a priority; the city's drainage; schedule for trash & bulk pick-up and her request for the correspondence to be broken up into zones; city signage on Town Center to be fast forwarded; scheduling meeting with the City Manager to discuss the Welcome Kit; look into the issue reference the lack of bus benches/shelters throughout the city and bring back a report; staff to work on an annual report for each department to be provided to the Commission and posted online to include all grants received; and the City Manager to provide the list of priorities for each department which was discussed at a previous workshop.

During the rainy season, she requested that the city maintain the alleyways, thoroughfares, medians, etc. more often because the grass tends to grow faster.

Commissioner Holmes expressed his concerns relating to the flooding, having the truck available to unclog the drains and the immediate need for the red light cameras.

Manager Finnie provided the Commission with an update on the red light system and the target date would be November 19, 2009 because the properties where the lights need to be installed are privately owned. The leases have to be negotiated with the property owners and then the technology would be installed.

Commissioner Holmes stated that he received several complaints from individuals who worked part time with the Parks & Recreation Department during the summer in previous years; however, they weren't able to get that same position this summer. He suggested

that the City Manager look into hiring some of these individuals on a part time temporary basis.

He continued by asking if the city receives franchise fees for Direct TV.

Manager Finnie said the city does receive a substantial amount of money from the county as a part of the franchise fees for Direct TV.

Commissioner Holmes asked for an update on the Veterans Way signage along Ali-baba Avenue. He said he's been waiting ever since the street naming dedication ceremony took place.

Manager Finnie said he would find out the status and get back to the Commission at the next meeting.

Commissioner Holmes stated that he'd been talking about the high water bills at every commission meeting and if the City Manager would keep the citizens updated then a workshop wouldn't have to be held. He suggested that the City Manager make regular reports to the citizens to let them know what's going on with the high water bills. He spoke about the need for drainage and the amount of money needed for drainage in the City of Opa-locka.

He further announced that the Grand Opening of Aswan Manor Apartments would be held on June 25, 2009 at 10:00 a.m.

During the last regular Commission Meeting Commissioner Tydus said she mentioned the need for cleaning the entrance "Welcome" signs into the city and unless something was done recently, as of this past Monday she noticed it had not been done.

Commissioner Johnson said she noticed the cleaning being done earlier that day.

Manager Finnie advised that there was some work done to the "Welcome" sign; however, he requested the opportunity to speak with the Commission off channel about the signs.

After brief discussion and confusion as to whether Commissioner Tydus was referencing the "Welcome" sign or the monument on NW 27th Avenue and Sharazad Boulevard; Commissioner Tydus indicated that she was speaking about the monument.

Manager Finnie said he was focusing on the "Welcome" signs; however, he would address the monument. He again requested to speak to the Commission about upgrading and modernizing the wooden "Welcome" signs.

As far as the Clerk's Office is concerned, Commissioner Tydus said she noticed that particular request for action was not included in the Action List of the last regular commission meeting.

Commissioner Johnson informed Commissioner Tydus that her request for action was a part of the Action List for the May 27, 2009 regular commission meeting.

In terms of the drainage, Commissioner Tydus previously mentioned that the residents along Perviz Avenue are putting their trash down the drainage.

Manager Finnie stated that the city vacuumed out the drainage on Perviz Avenue within the last two months.

Commissioner Tydus said she recently noticed a pile of trash in the drain. At this point, if the city could just address those residents on Perviz Avenue from NW 151st Street to Fisherman Street and send them notices of warning and education of what they're actually doing to the system.

In reading Miami Today over the weekend, she said she noticed the City of Miami has a listing of the permits for Arts & Entertainment and Filming issued to various production companies filming in their community which brought to mind the fact that last week she received a telephone call from the non-profit organization at the train station wanting to know what was going on because a filming production company was at their location to film. She said it appears that no one really benefited from that whole fiasco but the tenant and the police department.

Manager Finnie said he had no idea that there was going to be a filming but he was in the office on that Saturday and after he received the telephone call, he went to the site but the company had already left. He said he went back later on that week and they had just finished filming. He expressed his concerns about this company going out in the city to film, getting permission from the police department without approval from his office. He said that he doesn't want to micro manage but at the same time when he receives a call from one of the commissioners, he needs to have an answer and he didn't have the answer.

He continued by saying that he is currently dealing with this issue because he needs to know how that happened and who approved the permit because the city does have fees.

Commissioner Tydus asked, does the city have a permitting process and are there fees associated with it?

Manager Finnie replied, yes.

Commissioner Tydus requested that the City Manager submit the permitting process to the Commission at the next regular commission meeting.

Commissioner Tydus said that this type of issue is very sensitive because of the liability involved. Additionally, there should be requirements in the permitting process to allow the city to review the script prior to and credits should be included at the end of the

filming. She again requested that the City Manager provide the Commission with the permitting process and a report on the breakdown of this particular incident.

On behalf of the family of Brian Hooten, Commissioner Holmes thanked the Mayor/City Commission and staff for their assistance during their time of bereavement.

In the package submitted to the Commission reference grant opportunities, Mayor Kelley assumed that a decision was made since several grants are due by June 15th. He expressed his concerns about a couple of grants dealing with gangs and mentoring and asked if a decision was made on those types of grants.

Manager Finnie said he didn't have the chance to sit with staff and go through this in detail.

Should the city not meet the criteria for the grants relating to gang and related activities, Mayor Kelley suggested the city possibly partnering with another entity.

Manager Finnie advised that there had been several meetings with partners on that particular issue.

Mayor Kelley assumed that the transition back into the community would be the same concept because sometimes there are many ex-offenders needing assistance getting back into society.

Manager Finnie advised that there are four grants due on Monday, June 15, 2009 and he will email the Commission with the information on the following day.

As it relates to Segal Park, Mayor Kelley noticed that the package included a commencement date by the summer 2009. He said he'd been talking about getting Segal Park started for a while, therefore, he is assuming the city is not that far away from getting that work started.

At the regular meeting on May 27, 2009, Manager Finnie said he was a bit confused on the discussion relating to a two story building being built at Segal Park. He advised that the work being done at Segal Park deals with drainage.

Because she brought the discussion up about the two story building at Segal Park during the last commission meeting, Commissioner Johnson questioned how could the city as a whole allow someone to come in with the assumption that the Helen L. Miller Center was to be a two story building versus a one story building.

Manager Finnie said that this issue occurred before his time with the city.

For accountability purposes, Commissioner Johnson suggested that everyone responsible is held accountable.

Mayor Kelley stated that the instruction was for the City Manager and the City Clerk's Office to go back and look for any documentation. His point was on starting Segal Park Improvements and he is aware there's no money for new construction as a part of that funding. But the reason he brought this issue up is because he does think there's going to be possibilities for construction dollars. The city must address the drainage first while pursuing those funding dollars for construction.

Manager Finnie advised that the funding source for Segal Park is OCED. As the Commission may be aware, he sent a letter to OCED for the right to self construct the drainage and he is still waiting on a response. He informed the Commission that he is scheduled to meet with OCED on Monday, June 15, 2009.

Mayor Kelley asked for an update on Villa Francine.

Manager Finnie said the city is looking at the mortgages and the work on the fence stopped because of the weather conditions.

Mayor Kelley requested that the City Manager make sure there is ongoing communication with the residents of Villa Francine to keep them updated.

He further asked for an update on the Emergency Management Plan and one of the reasons why he's tentative on the Hurricane Preparedness Forum is because he would like the emergency plan to be a part of that session.

Manager Finnie said that the emergency plan is done and it's in the reviewing stages. Following the meeting with staff on June 17, 2009 for review and input, the final document would be presented to the Commission for final approval.

As it relates to the rededication of Ingram Park scheduled for July 11, 2009, Mayor Kelley asked who is responsible for waiting until the middle of the summer to have the re-opening of a park that's already being utilized.

Because of other scheduled weekend activities, Manager Finnie advised that July 11, 2009 was the only weekend they could schedule the rededication. He said he would get back to the Commission on this issue.

Commissioner Holmes gave a brief overview of the last renovations at the Helen L. Miller Center during the Earnie Neal administration.

Mayor Kelley stated that he likes to think visionary and the reason is because the property next to Segal Park is for sale and the city can get land acquisition, green space.

Manager Finnie informed the Commission that he just received a telephone call from the property owner and the issue is complicated so he'll need to talk to them individually.

Commissioner Johnson directed the City Manager to explore the opportunities available to receive funds for people facing foreclosures because cities are receiving dollars for foreclosure assistance. She further stated that she found out the city is working with the mortgage company located on the 3rd floor of Town Center.

Manager Finnie indicated that the mortgage company is working with Villa Francine and on foreclosures.

Commissioner Johnson said that information should have been provided in his report to the Commission so that the citizens are aware.

B. ACCOUNTS PAYABLE:

The City Commission instructed the city to pay its bills.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

A couple of months ago, Commissioner Johnson advised that she sent correspondence to staff and her colleagues about a wrong folio number brought up in a resolution. She requested that the issue is brought back and corrected for the files.

Manager Finnie said the issue was on Choice Development and the city pulled the folio number off of the Miami-Dade County website. He said he would research this issue to see if it has to be brought back but he believes that transaction is no longer moving forward.

Commissioner Johnson stated that any legislation voted on by the Commission cannot be changed by staff without the Commission voting on it.

Manager Finnie agreed to bring back the item in question.

18. CITY CLERK'S REPORT:

Commissioner Johnson directed the City Clerk to contact Lawrence Wright who has a concept for assisting the city with the water bill and she would like Mr. Wright to present it to the Commission.

As the sponsor of dual designation of a streetnaming dedication which is scheduled for June 27, 2009, Commissioner Johnson said she didn't want any of the signs going up before the dedication.

Clerk Irby said the city really didn't have any control over that; however, she would contact Miami-Dade County.

Commissioner Johnson commended the City Clerk for an excellent job in representing the city for Census 2010 jobs.

Mayor Kelley commended the City Clerk on the press conference with the Census and expressed the importance of not only job opportunities but an accurate count in 2010 to make sure everyone is counted due to an impact in funding as a result.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson apologized to the Commission on the Partnership in Education because when she went to present it to the schools, the document was in draft form. She suggested that staff as well as the Commission receive a copy of the document. Additionally, she would like to add, which she would bring back before the Commission, a section for 11th and 12th graders to volunteer as mentors to students.

She reported that she was appointed Chair for Miami-Dade County Bar Association Citizen Advisory Committee. She thanked the Commission and staff for their support of the Seniors Appreciation Event and briefly spoke about the success of the Opa-locka Steppers and their meeting dates with Miami-Dade College hosting nutritional classes on Fridays.

She announced that the newly established homeowners association in Opa-locka will meet on June 20, 2009 at 9:00 a.m. at Historic City Hall.

She thanked the Commission for supporting the first reading of the ordinance for Captain Barrington Irving and Commissioner Barbara Jordan for appointing her to CAA as a representative for District 1. Additionally, she attended an event for the Coast Guard; a funeral of a friend's brother; the Florida Convention on Miami Beach; and subsequently participated on a diversity panel representing the city.

Commissioner Tydus reported her attendance at the Opa-locka Seniors Appreciation; the city's Charter Review Board Meeting; Opa-locka North Dade Front Porch monthly networking meeting; Town of Miami Lakes Mayor's State of the Town Address and former Commissioner Brian Hooten's memorial. Also, School Board Member Wilbert T. Holloway and Congresswoman Carrie Meek were honored by the Whitney Young Jr. Distinguished Awards and she represented the city at that.

She further reported that the City of Miami Gardens held a viewing party where NBC World Wide featured and recognizing them for their accomplishments over the past six years of their incorporation as a new city in Miami-Dade County. She said she was proud of them but was encouraged as well that if the City of Opa-locka plan their work and work their plan, they too can receive that worldwide recognition.

Mayor Kelley reported that he attended the Miami-Dade County League of Cities Meeting; Press Conference Census 2010 and continuing to move forward with accessing

dollars to improve the city. He announced that the Seniors Fishing Trip is scheduled for June 25, 2009 and all interested seniors should contact the City Clerk's Office.

He continued by commending the City Clerk, City Manager and all those involved for allowing and bringing the meeting to the Senior Citizens Center. In moving forward, he would like to move the commission meetings every so often around the city at locations to be determined in an effort to bring government to the citizens.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 9:15 p.m.

MAYOR

ATTEST:

CITY CLERK